

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: December 3, 2007
Courtroom Deputy: J. Chris Smith
FTR Technician: Kathy Terasaki

Civil Action No. 05-cv-01917-RPM-MJW

ADEPT COMPUTER SOLUTIONS, INC., a California corporation,

Plaintiff,

Peter C. Forbes
Gary D. Aronson

v.

ZOLL DATA SYSTEMS, INC., a Delaware corporation,

Defendant.

Natalie M. Hanlon-Leh
James G. Sawtelle
Mary V. Sooter

COURTROOM MINUTES

Trial to Jury Day One

8:30 a.m. Court in session.

Plaintiff representative Scott Pickett and defendant's representative David Brown present.

Court's preliminary remarks.

ORDERED: Gary D. Aronson appearance entered as counsel for plaintiff.

8:36 a.m. Jurors present.

Statement of Case read to jurors by the Court.

All jurors sworn for voir dire.

Eighteen jurors called to the jury box.

Court voir dices jurors.

Court excuses for cause juror:

1000150393

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11:34 a.m. **Bench conference** regarding passing jurors for cause.
Counsel and Court agree to excuse juror for cause 100141606.

Court excuses for cause juror:

100141606

Plaintiff's challenges:

100143258
100137263
100121333

Defendant's challenges:

100121859
100148647
100130496

Twelve jurors selected to try the case:

100123144
100142699
100125713
100125942
100131729
100124478
100153323
100154762
100155964
100151456
100141909
100123005

Court instructs jurors.

Jurors excused.

Discussion regarding demonstrative exhibits and opening statements.

Court states use of Plaintiff's Demonstrative Exhibit 463 is permitted.

12:05 p.m. Court in recess.

1:30 p.m. Court in session.

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Jurors present.

Twelve jurors sworn to try the case.

1:34 p.m. Plaintiff's opening statement by Mr. Forbes.

2:32 p.m. Defendant's opening statement by Ms. Hanlon-Leh.

Court instructs jurors.

Jurors excused.

3:28 p.m. Court in recess.

3:43 p.m. Court in session.

Jurors present.

3:46 p.m. Plaintiff's witness, Scott K. Pickett, sworn.

Direct examination of Mr. Pickett by Mr. Forbes.

Plaintiff's Exhibits 488 and 347 identified, offered and received.

Plaintiff's Exhibit 486 identified, offered and received for illustrative purposes.

Court instructs jurors.

Jurors excused until 9:00 a.m. December 4, 2007.

4:35 p.m. Court in recess.

Trial continued. Total time: 6 hrs. 40 min.